

Supreme Court of India

Constitutions and constitutionalism are at their best when they interrogate power relations—both state and social—and seek to democratise public and private power

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most *significant* (I offer that as meaning worthy of study, emulation, further development). This piece should not be read as hagiography: the judiciary's record over the years has been patchy. What this piece seeks to show is those moments when the Constitution—and the courts—have been at their best.

The first of my crown jewels is ***PUDR vs Union of India*** (1982), a Supreme Court judgment that dealt with the use of bonded labour in construction projects for the 1982 Asiad in Delhi. Among other things, in *PUDR* (Peoples Union for Democratic Rights), the court held that the right against forced labour, guaranteed under Article 23 of the Constitution, included a right to a minimum wage, enforceable against a private employer; this was because nobody working below a minimum wage could be said to be truly 'free'. The court's closely reasoned judgment broke new ground in understanding concepts of force and freedom in the context of unequal power relations between capitalists and labourers.

Sticking with the theme of private power, ***Indian Medical Association vs Union of India*** (2011) is an SC judgment that held that Article 15(2) of the Constitution—which guarantees non-discriminatory access to wells, ghats and places of public resort—had to be read as a broad *anti-boycott* provision that prohibited the practice of caste (and other forms of social) boycotts. The court essentially read into the Constitution a civil rights guarantee that in many countries has taken decades to codify. Social boycotts were also the focus of

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